

deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis. Plaintiff’s complaint does not state a cause of action against CUEVA. The complaint states that Plaintiff brought some of his concerns to CUEVA on April 22, 2022 and CUEVA agreed with Plaintiff that Plaintiff having to wear a control jumpsuit during emergency medical transports was unreasonable; CUEVA then directed his subordinates to enforce his orders. The complaint also states that CUEVA would approve Plaintiff’s phone calls to a legal help center but another defendant, B. EBERT, would interfere and delay or deny the calls. There is no cognizable action stated against CUEVA in these allegations.

Leave to Amend. Leave to amend is proper where identified defects are amenable to cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party’s burden to show the trial court that a reasonable possibility exists that amendment can cure identified defects in that party’s pleading. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.) Having not filed opposition, Plaintiff has not shown a reasonable possibility of amendment to cure identified defects in the complaint.

Conclusion. CUEVA’s unopposed demurrer is sustained without leave to amend.

SARAH MARIE TIGER vs. CARL LOUIS BION DANTES; ET AL.
Case No. CU24-00699

Plaintiff’s Motion to Compel DANTES’s Further Responses to Requests for Admission, Set Two

TENTATIVE RULING

Plaintiff SARAH MARIE TIGER moves to compel Defendant CARL LOUIS BION DANTES to further respond to thirteen requests for admission from her requests for admission, set two.

Meet and Confer Efforts. The court first considers the adequacy of the parties’ efforts to meet and confer to work these issues out before resorting to a motion to compel further responses. Code of Civil Procedure section 2016.040 requires a declaration “showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion” to compel. Plaintiff’s counsel’s attached declaration to the motion to compel further responses to requests for admission states that counsel served the discovery requests at issue on June 4, 2025 and received DANTES’s responses on June 18, 2025. (Declaration of Jesus Becerra in Support of Motion to Compel Further Responses to Requests for Production (“Becerra Dec.”) at ¶¶ 5-6, Exhibits 4-5.) Plaintiff’s counsel sent DANTES a meet and confer letter regarding his discovery responses on July 11, 2025. (*Id.* at ¶ 7, Exhibit 6.) DANTES wrote back on August 15, 2025. (*Id.* at ¶ 8, Exhibit 7.) DANTES provided some supplemental

responses on August 20, 2025. (*Id.* at ¶ 9, Exhibit 8.) The instant motion was filed on September 16, 2025.

The trial court has discretion in determining whether adequate meet and confer efforts preceded the filing of the motion. (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424 [factors include complexity of discovery issues, history of counsel in prior disputes, judge's gut feeling; sending one brief letter 13 days prior to deadline to file motion was not sufficient attempt].) The purposes behind the meet and confer requirement are to force the parties to reexamine their positions, and to narrow their disputes to the “irreducible minimum” before asking the court to resolve them. (Weil & Brown, Civil Procedure Before Trial, § 8:1159, pp. 8F-65 and 8F-66; See also *Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1281, quoting *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431 [“‘informal resolution’ of discovery disputes ‘entails something more than bickering with (opposing counsel).’ Rather, the statute ‘requires that there be a serious effort at negotiation and informal resolution.’”])

Plaintiff’s efforts to meet and confer were not adequate. Plaintiff’s initial meet and confer letter was sufficiently detailed. However, Plaintiff did not attempt to reduce the parties’ disputes to the irreducible minimum before resorting to motion practice. DANTES’s response to the meet and confer letter demonstrates willingness to cooperate and provide further responses if certain requests were reissued. Notably, DANTES in fact further responded to requests for admission #47 and 48, but there is no evidence before the court that Plaintiff attempted to meet and confer on those requests before continuing to include them in the instant motion.

Conclusion. Plaintiff’s motion is denied due to insufficient efforts to meet and confer.

IN THE MATTER OF J.G. WENTWORTH ORIGINATIONS, LLC
Case No. CU25-09079

Petition for Approval for Transfer of Payment Rights

TENTATIVE RULING

The Parties are to appear.

KELSTIN GROUP, INC. vs. JAMIE LYNN LARA
Case No. FCM163685

Motion to Set Aside Default Judgment and Quash Service of Summons

TENTATIVE RULING